

Court No. - 39

Case :- WRIT - C No. - 9594 of 2021

Petitioner :- Durgvijay Yadav

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Jagadish Prasad Yadav

Counsel for Respondent :- C.S.C.

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Deepak Verma,J.

Learned counsel for the petitioner prays for and is granted permission to implead the Executive Engineer concerned as respondent no.4 in the array of parties within the course of the day.

Sri Rakesh Kumar Tripathi holding brief of Sri Narendra Kumar Tiwari, learned counsel for the Department is present.

The recovery citation has been issued pursuant to the assessment on allegations of theft of electricity. The petitioner has not challenged any of the stages of the assessment prior to issuance of the recovery citation.

Learned counsel for the petitioner further submits that a first information report had been lodged.

The contention of learned counsel for the petitioner is that the petitioner has electricity connection in his name in the premises in question and the allegations of theft of electricity are false. Moreover, after lodging of the first information report, it was not open for the respondent-Department to issue recovery citation.

As far as, the factum of challenge to the factum of theft is concerned, no factual inquiry can be made by this Court. It is open for the petitioner to file appeal against the order of final assessment.

As far as the second assertion with regard to lodging of the first information report is concerned, it is noted that the recovery citation has been issued after determination of civil liability for unauthorised use of electricity/theft of electricity. The procedure in this regard has been provided under Clause 8.1 of the Electricity Supply Code, 2005.

In case, the petitioner files an appeal, the appellate authority would be under an obligation to ascertain as to whether the assessing authority had complied with the provisions of Clause 8.1 in making assessment of civil liability of the petitioner.

The writ petition is accordingly, **disposed off**.

Order Date :- 18.3.2021

Nitin Verma